

26STLC04168 26STLC04168

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-08-25

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Case Number: 26STLC04168 Hearing Date: August 25, 2026 Dept: 26

TENTATIVE

RULING:

Defendant PIH Health Good Samaritan Hospital's

Demurrer to Complaint is continued to 10/06/2026 at 10:00 am in Department 26

at the Spring Street Courthouse. By 09/08/2026, Defendant is to file proof of service of the Demurrer and Notice of New Hearing Date in accordance with the statutory requirements. Failure to do so may result in the Demurrer being overruled. Plaintiff may file and serve an Opposition to the Demurrer no later than September 17, 2026.

Analysis:

Plaintiff Ayannah Mills, RN ("Plaintiff"), in propria

persona, filed the instant action against Defendant PIH Health Good Samaritan Hospital ("Defendant") on June 29, 2026.

Plaintiff filed a Motion re: to Amend Complaint on July 24, 2026, which is set

for hearing on November 2, 2026. Defendant filed and served the instant Demurrer to the Complaint on July 29, 2026.

No opposition to the Demurrer has been filed to date.

Discussion

Defendant served the Demurrer on

Plaintiff by electronic mail. (Demurrer, p. 10.) Unrepresented parties such as Plaintiff

must affirmatively consent to electronic service. (Cal. Rules of

Court, rule 2.251(c)(3)(B).) Service of the Demurrer upon Plaintiff by

electronic mail, therefore, does not meet the statutory requirements for

notice. Failure to give notice of the papers and hearing date is a violation of

due process and of the statutory notice requirements. (Code Civ. Proc., § 1005;

Jones v. Otero (1984) 156 Cal.App.3d 754, 757.) Because Defendant has not established that the Demurrer was properly served, the Court will continue the hearing on the Demurrer.

The Court makes two other comments on status of the Demurrer. First, the Demurrer is accompanied by a meet and confer declaration as required by Code of Civil Procedure section 430.41. (Demurrer, Liu Decl., ¶¶3-5.) According to the meet and confer declaration, Plaintiff agreed to amend the Complaint. (Ibid.) Plaintiff could have filed an amended complaint without leave of Court had she filed it before the Demurrer was filed. (Code Civ. Proc., § 472(a).) Rather than do so, however, Plaintiff filed a Motion re: to Amend Complaint, seeking leave to amend the Complaint, which is not set to be heard until November 2, 2026.

Accordingly, Defendants timely filed their Demurrer to the initial Complaint, which was appropriate given that the Complaint is still pending. The Court believes the hearing on the Demurrer will render moot Plaintiff's motion for leave to file an amended complaint, because the Court will decide whether leave to amend is appropriate in ruling on the Demurrer. Plaintiff may make any arguments in support of her request for leave to amend in opposition to the Demurrer. Holding a separate hearing as to leave to amend after the Demurrer has been decided would make little sense. The Court takes off calendar the Motion re: to Amend Complaint filed by Plaintiff on July 24, 2026.

Second, on the merits, the Court notes that the Court does not intend to sustain the Demurrer based on formatting or uncertainty. The Court is aware of no rule that makes non-compliance with the formatting rules set forth in Cal. Rules of Court, rule 2.112 grounds for a demurrer, and special demurrers, concerning uncertainty, are not permitted in the Limited Civil Court. (Code Civ. Proc., § 92, subd. (c).) Thus, the only remaining grounds raised as to which demurrer may be sustained are that: Plaintiff's claim for Medical Negligence fails to state a claim; and that Plaintiff's complaint for Medical Negligence is time barred by the statute of limitations pursuant to Code Civ. Proc., § 340.5.

Conclusion

Defendant PIH Health Good Samaritan Hospital's Demurrer to Complaint is continued to 10/06/2026 at 10:00 am in Department 26 at the Spring Street Courthouse. By 09/08/2026, Defendant is to file proof of service of the Demurrer and Notice of New Hearing Date in accordance with the

statutory requirements. Failure to do so may result in the Demurrer being overruled. Plaintiff may file and serve an Opposition to the Demurrer no later than September 17, 2026.

Moving party to give notice.